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LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	20CV366946	Rajesh Raghani vs Samir Maharjan	See below.
9:00 2	24CV436942	John Whitney vs. Ford Motor Company	Motion is withdrawn.
9:00 3	25CV467995	Prashant Tiwari, PhD vs. Monte Kaehr, et.al.	See below
9:00 4	25CV471732	Creditors Adjustment Bureau vs. Olguin and Vazques Landscape and Tree Service	Plaintiff petitions this court to compel defendant to respond to first set of interrogatories. Plaintiff timely requested interrogatories and sent the request to Defendant. Defendant never responded. Plaintiff's petition to compel defendant to respond to Plaintiff's first set of interrogatories is GRANTED. Plaintiff's motion for sanctions is GRANTED.
9:00 5	25CV479346	Immigrant Rights Defense Council, LLC vs. My Thi Phuong Nguyen	Plaintiff petitions this court to compel defendant to respond to Plaintiff's request for production of documents. Defendant refused to provide any documents to Plaintiff's request. No objection was filed to Plaintiff's petition. Plaintiff's petition to compel Defendant to respond to Plaintiff's request for production of documents is GRANTED. Plaintiff's request for monetary damages is GRANTED.
9:00 6	25CV482868	Yiyi Zhang vs. OKBL USA Technology, Inc.	See below
9:00 7	2006-1-CV-059161	National Credit Acceptance, Inc. vs. R. Emblanc	Defendant moves this court to vacate default judgment. Default judgment was entered against defendant as of February 15, 2007. Defendant's motion is untimely. Defendant fails to show any statute or facts which would grant him relief from the default judgment. Plaintiff's motion is DENIED.
9:00 8	24CV437781	Rose Bougerba vs. Robert Belstock	Return of warrant
9:00 9	24CV437781	Rose Bougerba vs. Robert Belstock	Return of warrant.
9:01 7	23CV426979	Zaeem Johnson, a minor, by and through his GAL, Chis Johnson and Farhat Khan vs. Mitchell James Wong; Ann Lai Wong; and Does 1 through 15	Plaintiff's attorney moves to withdraw as counsel. Plaintiff's attorney's motion is GRANTED.

Line 1

Case Name: *Rajesh Raghani v. Classic Diamond & Jewelry, LLC et al.*

Case No.: 20CV366946

Plaintiff Rajesh Raghani (“Raghani”) has brought a motion for judgment on the pleadings (“JOP motion”) as to the operative first amended complaint (“FAC”). Defendants Samir Maharjan (“Maharjan”) and Classic Diamond & Jewelry, LLC (“Classic Diamond”) (together, “Defendants”) oppose the motion. By way of background, the court notes that on May 26, 2026, it denied Defendants’ motion to grant relief from the court’s previous order deeming certain admissions as true. As the court discusses further below, these admissions form the basis of Raghani’s JOP motion.

The court GRANTS judicial notice of Exhibit A, the court’s order “deeming matters in requests for admission admitted,” to Raghani’s request for judicial notice in support of Raghani’s JOP motion. (Raghani’s Request for Judicial Notice, Ex. A.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).)

The court GRANTS judicial notice of Exhibits A through H to Defendants’ request for judicial notice in support of Defendants’ opposition to Raghani’s JOP motion. (Defendants’ Request for Judicial Notice, Exs. A-H; see Evid. Code, § 452, subd. (d).)

“A plaintiff’s motion for judgment on the pleadings is analogous to a plaintiff’s demurrer to an answer and is evaluated by the same standards. The motion should be denied if the defendant’s pleadings raise a material issue or set up affirmative matter constituting a defense; for purposes of ruling on the motion, the trial court must treat all of the *defendant’s* allegations as being true.” (*Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331, internal citations omitted, emphasis original.) “Where the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted.” (*Barasch v. Epstein* (1957) 147 Cal.App.2d 439, 443, internal citation omitted.)

The court DENIES Raghani’s JOP motion. Raghani “seeks judgment for the amounts set forth in the complaint, including punitive damages as pleaded, on the ground that the complaint states facts sufficient to constitute causes of action and, because the matters in Plaintiff’s Request for Admissions have been deemed admitted, Defendants do not and cannot state facts sufficient to constitute a defense.” (Notice of JOP Motion, pp. 1:26-2:2.) “A plaintiff may recover judgment on a motion for judgment on the pleadings only if his complaint states facts sufficient to constitute a cause of action and the answer neither raises a material issue nor states a defense.” (*McClain v. City of South Pasadena* (1957) 155 Cal.App.2d 423, 430 (*McClain*), internal citation omitted). Here, Raghani’s motion states that the complaint’s allegations are “sufficient on their face,” lists the admissions deemed admitted, and states that the “deemed admissions conclusively establish Defendants’ liability on all causes of action.” (Memorandum of Points and Authorities in Support of JOP Motion (“MPA”), pp. 2:12-6:26; see also *id.* at p. 6:9-12 [“These admissions establish every element of Plaintiff’s wage-and-hour causes of action and negate any possible defense. Because the deemed admissions conclusively resolve liability and leave no material issue in dispute, judgment on the pleadings is appropriate under Code of Civil Procedure section 438.”].) Outside of listing the deemed admissions, Raghani’s JOP motion does not discuss how